

Calendar Line 1

Case Name: *Plaza Services LLC v. George Berry*

Case No.: 24CV428612

Defendant's Motion to Set Aside Default Judgment for lack of service

The Court file reflects a facially valid proof of substituted service on July 25, 2024 at 4:55 p.m. at Defendant's residence on Sequoia Drive in Gilroy, California. A signed proof of service creates a rebuttable presumption that service was properly effected. Defendant bears the burden to present admissible evidence establishing lack of valid service. Defendant has not met his burden to rebut that presumption.

Defendant's motion argues that front door surveillance footage exists showing improper service (to be provided upon request.) No declaration regarding details provided. Unsubmitted evidence is insufficient to rebut the presumption of proper service. The Court does not consider evidence referenced in a motion but not submitted. The Court declines to continue the hearing sua sponte to permit supplementation of the evidentiary record based solely on assertions that additional evidence may exist.

The Court further notes that Defendant did not file proof of service of the motion itself. While this defect is not jurisdictional, it reflects noncompliance with the procedural requirements governing noticed motions and further supports denial of relief on the current record.

Accordingly, Defendant's motion to set aside default judgment is DENIED.

The Court will prepare the Order.

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Calendar Line 2

Case Name: *Balbinder Kaur v. General Motors, LLC*

Case No.: 24CV434201

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES & COSTS

Plaintiff moves for attorney's fees and costs pursuant to Civil Code section 1794(d) following settlement of this action under the Song-Beverly Consumer Warranty Act. Defendant opposes the motion, primarily arguing that the motion is untimely and that the fees requested are excessive and based on templated work.

I. Timeliness

Defendant contends the motion is untimely under *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644. Defendant argues that the 180 day period to file and serve the motion began 45 days after the May 15, 2025 settlement. Defendant relies on *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155) in support of its position that settlements serve as judgments. The court is not persuaded that this motion violates statutory deadlines. *Hatlevig* tied the 180 day deadline to the actual entry of dismissal. Because no dismissal has been entered in this case and the matter remains pending on the docket, the 180 period has not begun to run. (See California Rules of Court, rule 3.1702(b)(1)).

II. Reasonableness of Fees

Civil Code section 1794(d) mandates an award of reasonable attorney's fees to a prevailing buyer. In determining a reasonable fee, courts apply the lodestar method, calculated by multiplying the number of hours reasonably expended by a reasonable hourly rate. *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.

Plaintiff seeks \$28,161.50 in attorney's fees based on 51.6 hours of work, plus an additional 6.0 hours for reviewing Defendant's opposition, preparing a reply, and attending the hearing on this motion. Plaintiff also seeks \$1,487.33 in costs. Plaintiff requests hourly rates of \$695 for partner-level work performed by attorney David Barry, \$525 for associate-level work performed by attorney Debora Rabieian, and \$450 for attorney Brian Kim. In the June 16, 2026 reply brief, Plaintiff voluntarily reduced the total fees from the original \$32,609.50 in attorney's fees based on 64 total hours with 12.4 hours of anticipated time. Plaintiff concedes that the anticipatory time he billed for the motion exceeded the time spent. Plaintiff withdraws 6.4 hours at Mr. Barry's hourly rate of \$695 for a total amount of \$4,448.00 from his Motion for Attorneys' Fees and Costs.

Mr. Barry declares he has approximately 23 years of legal experience, with nearly 20 years concentrating in consumer protection and lemon law litigation. He notes that courts have previously approved hourly rates of \$675 (2024-2025) for his work across multiple California counties. Plaintiff contends the requested \$695 rate is reasonable because of rates awarded in the same market to attorneys with comparable experience, as well as the survey of billing rates.